



Formal Complaint: Failure to Provide Court Recording & Administrative Delays – Case No. 2026-066952 (Matthee v Fernandes & Others)

2 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: RDavid@judiciary.org.za
Bcc: wilburmat@gmail.com

Wed, 01 Apr 2026 at 21:13

Dear Mrs. David

I am writing to formally place on record the conduct of the Registrar’s office and the court transcription service (Inlexso) regarding my urgent request for the official audio recording and certified transcript in the above-mentioned matter.

I am a self-represented litigant. On 25 March 2026, the matter was heard in Urgent Court 4 before Judge Anderson. I require the recording and transcript to bring a rescission application (Rule 42), as well as for potential complaints to the Judicial Conduct Tribunal and the Legal Practice Council.

Timeline of Events

Date Time Event

- 26 March 2026 11:35 I emailed the Acting Chief Registrar, Ms N Hanekom, and the Deputy Registrar / Court Manager, Ms N Chwethiso, formally requesting the official recording and certified transcript. I have received no response to that email.
- 26 March 2026 12:15 I separately emailed Belinda Botes of Inlexso with a parallel request for the audio recording and transcript.
- 26 March 2026 14:24 Ms Botes requested additional details (names of parties, judge, counsel).
- 26 March 2026 14:42 I provided all the requested information.
- 27 March 2026 21:49 Ms Botes acknowledged, stating she would “request the audio and revert.”
- 31 March 2026 10:00 I sent a follow-up email to Ms Botes requesting an update on the status and expected turnaround time.
- 31 March 2026 10:01 (auto-reply) I received an automatic reply from Ms Botes indicating she is on bereavement leave from 31 March to 6 April 2026, returning 7 April.
- 1 April 2026 19:42 Having received no further communication, I emailed Ms Tina Jorgenson (copied on earlier correspondence), asking for an urgent update and confirmation whether the audio request had been logged before Ms Botes’ leave.
- 1 April 2026 20:17 Ms Jorgenson replied, but instead of assisting, she forwarded my email back to Ms Botes with a note “Please see below please.”
- 1 April 2026 20:41 After I pointed out that Ms Botes was on leave, Ms Jorgenson informed me that she had “WhatsApped Belinda.” She took no further action to process my urgent request.

Conduct I Wish to Place on Record

1. Failure of the Registrar’s office – Ms N Hanekom (Acting Chief Registrar) and Ms N Chwethiso (Court Manager) have failed to acknowledge or respond to my formal request of 26 March 2026. Their silence has left me without any official recourse through the court administration.
2. Breakdown in transcription service – Inlexso, the service provider responsible for court transcripts, has no effective backup system. During Ms Botes’ bereavement leave, her colleague, Ms Jorgenson, did not action my urgent request but instead routed it back to the absent employee. My urgent matter was effectively ignored.
3. Lack of administrative oversight – Despite my repeated attempts and the urgent nature of my request (tied to a Rule 42 rescission application), neither the Acting Chief Registrar nor the Court Manager has responded or ensured that the necessary court record is made available.

As a self-represented litigant, I am significantly prejudiced. The delays undermine my ability to proceed with a time-sensitive rescission application and impede my access to the court record.

Request for Intervention

I respectfully request that you intervene as Director of Court Operations to:

1. Direct the Registrar's office to formally respond to my request of 26 March 2026 and provide an update of the official court recording.
2. Direct Inlexso to immediately provide me with a quote and confirmed turnaround time for the audio recording of both appearances on 25 March 2026 (10:00 and 14:15).
3. Clarify the proper procedure for self-represented litigants to obtain urgent transcripts when the usual contact person is unavailable, so that similar delays can be prevented in the future.

Attachments

Copies of all correspondence referenced above are available upon request.

I am available on 069 635 1435 or at info@ethichawks.co.za should you require any further information.

Thank you for your attention to this matter.

Yours faithfully

Wilbur William Matthee
Applicant (Self-Represented)
Case No: 2026-066952

Ruanne David <RDavid@judiciary.org.za>
To: Wilbur William Matthee <info@ethichawks.co.za>

Thu, 09 Apr 2026 at 22:07

Good day Sir

Kindly note that I was out of office on the 01 to 02 April 2026. I am sure that my out of office message would have been sent to you.

My mailbox was also full so I only started receiving e-mails yesterday with further updates today.

I have not had the chance to go back to those e-mails as yet.

I read this mail due to the mail you submitted today.

Kindly note that the courts are run by the Court Managers together with the Chief registrars (High Court)/ Registrar (Labour Court).

The Provincial Service Centre at which I am based has no control over litigation matters running at the courts.

I can only send a request for the reasons for the outstanding issues raised, which I have done a few minutes ago. You have been cc'd therein.

Kind regards,

[Quoted text hidden]

Disclaimer:

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